

26STCV13240 26STCV13240

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Division: Civil Law and Motion

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BACKGROUND

Plaintiff

Patrice Corrine McMichael

alleges that the conditions in her leased unit were substandard and the unit was not suitable for habitability. On April 24, 2026, Plaintiff filed a complaint against Defendants Mary Diana Hackland and Robert Allen Hackland. The complaint alleges 15 causes of action stemming from the facts alleged above.

On June 29, 2026, Defendant

Mary Diana Hackland filed a Motion to Transfer Venue.

On July 20, 2026,

Plaintiff filed an opposition.

On

September 3, 2026, Defendant filed a reply.

TENTATIVE RULING

Defendant's Motion to

Transfer Venue is GRANTED.

Defendant shall be awarded

\$2,125 in attorney's fees.

LEGAL STANDARD

“The proper place for trial is fixed by statutory scheme.” (Battaglia Enters., Inc. v. Superior Ct. (2013) 215 Cal.App.4th 309, 313 (Battaglia).) Code of Civil Procedure section 395, subdivision (a), provides in part “[e]xcept as otherwise provided by law . . . If the action is for injury to person or personal property or for death from wrongful act or negligence, the superior court in either the country where the injury occurs or . . . or the county where the defendants, or some of them reside at the commencement of the action, is the proper court for the trial of the action.”

“Generally, when venue is proper in more than one county, a plaintiff has the choice of where to file the action from among the available options. There is a presumption that the county in which the plaintiff chose to file the action is the proper county.” (Battaglia, supra, at pp. 313–314 [citation omitted].) Where a party is seeking a change of venue, the burden is on the moving party to defeat this presumption. (Id. at p. 314.)

Regarding transfer of an action, the Code of Civil Procedure provides:

The court may, on motion, change the place of trial in the following cases:

(a) When the court designated in the complaint is not the proper court.

(b) When there is reason to believe that an impartial trial cannot be had therein.

(c) When the convenience of witnesses and the ends of justice would be promoted by the change.

(d) When from any cause there is no judge of the court qualified to act.

(e) When a proceeding for dissolution of marriage has been filed in the county in which the petitioner has been a resident for three months next preceding the commencement of the proceeding, and the respondent at the time of the commencement of the proceeding is a

resident of another county in this state, to the county of the respondent's residence when the ends of justice would be promoted by the change.

(Code Civ. Proc., § 397, subds.

(a)–(e).)

DISCUSSION

I.

Transferring

Action to Shasta County

Defendant seeks to

transfer this action to the Shasta County Superior Court. Defendant contends that this transfer is proper because: (1) she is a resident of Shasta County; (2) the subject property is in Shasta County; and (3) the alleged wrongful acts occurred in Shasta County. (See Motion, p. 2:11-24.)

The Court finds that the Shasta

County is the proper court to hear this action and, further, the convenience of witnesses and the ends of justice would be promoted by the transfer of this action to the Shasta County Superior Court. Given that the alleged wrongful conduct and injury occurred in Shasta County and that Defendant currently resides in Shasta County, the Shasta County Superior Court is the proper court to handle this action. (See Code Civ. Proc., § 395, subd. (a); see also Code Civ. Proc., § 397, subd. (a); see Compl., ¶¶ 1, 16-17, 117.) Further, the fact that the alleged wrongful conduct and the property at issue are in Shasta County makes clear that relevant witnesses, evidence, and information to prosecute this case are in Shasta County. (See Code Civ. Proc., § 395, subd. (c).)

Lastly, it is preferred to hold actions in the region where the underlying events occurred. (See *Rycz v. Superior Court* (2022) 81 Cal.App.5th 824, 848 [“Generally speaking, conducting trials in the venue most connected to the underlying events contributes to a more fair and efficient system of justice.”]; see also *Seybert v. Imperial County* (1956) 139 Cal.App.2d 221, 234 [“There is a local interest in having localized controversies decided at home.”].) Accordingly, it is proper to hold this action in Shasta County since that is where the underlying events occurred. (See Compl., ¶¶ 1, 16-17, 117.) For these reasons, Defendant has met her burden in showing that the proper county to hear this action is Shasta County.

In opposition, Plaintiff

contends that Defendant has not met her burden in “affirmatively demonstrating that Plaintiff’s selected venue is legally improper under the applicable statutory provisions.” (Opp’n, p. 3:10-12.) However, as explained above, Defendant has met this burden by demonstrating that Shasta County is the proper venue for this action because this is where the alleged injury occurred and where Defendant resides. (See Code Civ. Proc., § 395, subd. (a).) Plaintiff also contends that Defendant has failed to make a requisite showing that Shasta County is the proper venue for this action because she failed to consider the complaint in its entirety. (See Opp’n, pp. 10:5-11:7.) However, Defendant’s analysis of the complaint provides sufficient justification to transfer this action to Shasta County because this where the subject property is located, where the alleged wrongful acts and injury occurred and where defendant resides.

In short, Defendant has

met her burden in demonstrating that Shasta County is the proper venue for this action. Accordingly, the Court shall transfer this action to the Shasta County Superior Court.

II.

Attorney’s

Fees

In a motion to transfer

venue, the Court may award attorney’s fees to the prevailing party. (Code Civ. Proc., § 396b, subd. (b).) In determining whether to award attorney’s fees, the Court must consider: “(1) whether an offer to stipulate to change of venue was reasonably made and rejected, and (2) whether the motion or selection of venue was made in good faith given the facts and law the party making the motion or selecting the venue knew or should have known.” (Ibid.)

Here, Plaintiff rejected a

stipulation to transfer this action to Shasta County. (See Nelson Decl., ¶¶ 2-3.) As evidenced by the complaint, Plaintiff also knew that the alleged wrongful acts and injury underlying this action all occurred in Shasta County. (See Compl., ¶¶ 1, 16-17, 117.) Furthermore, Plaintiff’s only justification for pursuing this action in Los Angeles County was because this is where her attorney was located and because she consented to said venue. (See id. at ¶ 9.)

Given the foregoing, the Court shall award attorney's fees. Not only did Plaintiff reject Defendant's stipulation, but Plaintiff knew or reasonably should have known that Shasta County was the proper venue. (See Code Civ. Proc., § 396b, subd. (b).) Therefore, attorney's fees are warranted.

Defendant requests \$3,825 in attorney's fees. Defendant's counsel seeks an hourly rate of \$425 per hour, which the Court finds reasonable. (Nelson Decl., ¶ 5.) Counsel contends he spent five hours on this motion and anticipates an additional four hours to reply to Plaintiff's opposition and attend the scheduled hearing. (Ibid.) The Court finds those amounts excessive given the motion was relatively straightforward and the reply very brief. Therefore, the Court shall reduce the time spent working on this motion to three hours and the time on the reply brief and remote appearance at the hearing to two hours. Accordingly, Defendant is awarded \$2,125 in attorney's fees.

CONCLUSION

For the foregoing reasons, Defendant's Motion to Transfer Venue is GRANTED.

Defendant is awarded \$2,125 in attorney's fees to be paid by Plaintiff's counsel to Defendant within thirty days of the Court's order.